

26CHCV01750 26CHCV01750

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 26CHCV01750 Hearing Date: September 1, 2026 Dept: F47

Dept. F47

Date: 9/1/26

Case #26CHCV01750

HEARING ON

EXPEDITED PETITIONS

TO APPROVE COMPROMISES OF MINORS' CLAIMS

Petitions filed on 7/14/26.

RULING:

This action arises out of a motor vehicle accident that occurred on 6/6/25 in Pacoima, California.

On that date, a vehicle in which the Minor Plaintiffs Laila Moreno and Mia Moreno were passengers was

rear-ended by a vehicle driven by Defendant Umberto Marcial Meraz (Defendant). The Minors suffered personal injuries and were

treated in the emergency room where x-rays were taken. Thereafter, the Minors received chiropractic care. The Minors have completely recovered from their injuries.

On 4/30/26, the Minors filed this action by and through their Guardian Ad Litem, who is also their parent, against Defendant alleging causes of action for motor vehicle and general negligence. There is no evidence in the court file that

the complaint was ever served on Defendant and Defendant has never appeared in the action.

On 7/14/26, Expedited Petitions to Approve the Compromise of the Minors' claims were filed. On 7/20/26, the Court issued rulings on the Expedited Petitions noting that certain issues needed clarification and/or correction. (See 7/20/26 Minute Orders). Additionally, the Court noted in each ruling that:

If the claims of both minor plaintiffs and their mother were settled before this action was filed, it appears that this action was improperly filed for the sole purpose of having the instant petition and the petition regarding the minor co-plaintiff approved. Los Angeles Superior Court Local Rule 4.115(a)(1) provides that "[i]f no civil action is pending, the proper court to approve the settlement is the probate court, as provided in Probate Code sections 2505(b) and 3500."

(See 7/20/26 Minute Orders, p.2).

In order to resolve the issues noted in the rulings, the Court set the petitions for hearing on 9/1/26 pursuant to CRC 7.950.5(c)(2) and ordered any supplemental papers to be filed at least 10 court days before the scheduled hearing date.

Instead of addressing the issues raised in the Court's 7/20/26 Minute Orders, on 8/28/26, Plaintiffs counsel submitted a Request for Dismissal of the complaint without prejudice.

It is not clear whether the dismissal was requested because counsel determined that the petitions should have been filed in probate court and is actively seeking approval of the compromises of the minors' claims in probate court. If so, counsel must present evidence that such filings have been made in the probate court to approve the settlements of the minors' claims.

If counsel is not pursuing approval of the compromise of the claims in probate court, this Court cannot dismiss this action without first holding a hearing to approve settlement of the minors' claims as set forth in the petitions which have already been filed. CRC 3.1385(d) ("If the settlement of the case

involves the compromise of the claim of a minor or person with a disability, the court must not hold an order to show cause hearing under (b) before the court has held a hearing to approve the settlement, provided the parties have filed appropriate papers to seek court approval of the settlement.”); See also CCP 372; Probate Code 3500, 3600-3601.

In such case, the Court will continue the instant hearing so that counsel can address the issues raised in the Court's 7/20/26 Minute Orders. Once those issues are properly addressed and the compromises of the minors' claims are approved, the Court can then address dismissal of this action.